E052A MHC Audit Indemnification BCC Gmail

Category	PERSONAL
Sent (ET)	Wednesday, September 16, 2026 01:57 PM EDT
Source file	RE_ Parakeet MHC Audit Request.eml
SHA-256	`8347bae328454b13a5c4363c7dc214107cba5c1bc470e1b8fd8dbc7d1594ad72`

Attachments

None

From	David Berman <dberman@parakeetcommunities.com>
To	Austin Berk <austin@parakeetcommunities.com>
Bcc	bermandavid11@gmail.com <bermandavid11@gmail.com>
Sent	Wed, 16 Sep 2026 17:57:36 +0000
Subject	RE: Parakeet MHC Audit Request

Dropping Citrin for a moment but the auditors have reviewed the Parakeet Management Agreement and the indemnification clauses being referenced and noted wasn't sufficient for indemnification from an audit standpoint. Your reference to being in the final stages of a settlement signal further to the auditors that this needs to be investigated.

The harder you try to prevent the auditors from trying to do their due diligence, the more disclosure and documentation it is going to force in the audited financials for Parakeet MHC. If you tell an auditor to not look at something, they're naturally going to want to look specifically at that matter being referenced. We should just give the audit folks what they need so they can do the job they've been engaged to do and hopefully MHC can avoid a qualified audit opinion in the process.

From: Austin Berk <austin@parakeetcommunities.com>
Sent: Wednesday, September 16, 2026 11:10 AM
To: Kulbick, Jacqueline <jkulbick@citrincooperman.com>
Cc: David Berman <dberman@parakeetcommunities.com>; Jones, Michael <mjones1@citrincooperman.com>
Subject: Re: Parakeet MHC Audit Request

Parakeet Communities is named as a defendant in one pending matter: a Chapter 93A claim by five residents against American MHC LLC and Whispering Pines MHC MA LLC over rent increases and tenancy practices at two Massachusetts communities. Parakeet is named only in its capacity as property manager and holds no ownership stake in either property. The parties are in the final stages of documenting a settlement, funded entirely by the property owners, to put the matter behind them. Parakeet is indemnified and held harmless under the property management agreement, so its net financial exposure is zero. No judgment has entered, and there is no admission of liability by any party.

With that said, can you explain the materiality of this to the audit?

From: Kulbick, Jacqueline <jkulbick@citrincooperman.com>
Sent: Wednesday, September 16, 2026 10:59 AM
To: Austin Berk <austin@parakeetcommunities.com>
Cc: David Berman <dberman@parakeetcommunities.com>; Jones, Michael <mjones1@citrincooperman.com>
Subject: Parakeet MHC Audit Request

Good Morning Austin –

Hope all is well. As part of our required subsequent event procedures, I wanted to send an email with regards to the class action lawsuit involving Parakeet Communities. Could you please provide an update on the status of the case and advise whether the matter still undergoing litigation?

In addition, as part of standard audit procedures, we would like to send a legal confirmation to Eckert Seamans, the attorney handling this matter. Please see the attached for the confirmation letter template. If you could please print on Company letterhead, sign it, and return to us we would appreciate it. Upon receipt, we will send the confirmation directly to counsel via email.

Thank you,

Jacquie

Jacqueline Kulbick

Director

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Austin Berk
Parakeet Communities

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